
**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

RULING AND ORDER

**GRANTING DEFENDANT’S MOTION
TO STRIKE and**

**GRANTING IN PART AND DENYING IN
PART DEFENDANT’S MOTION TO
APPEAR IN CIVILIAN CLOTHING AND
WITHOUT RESTRAINTS**

Case No. 251403576

Judge Tony F. Graf, Jr.

Defendant Tyler James Robinson moves for an order permitting him to appear in civilian clothing and without physical restraints at all pre-trial hearings. (Dkt. 83).

Due to the potential for the disclosure of court security protocols, the court held a closed hearing on October 24, 2025. The parties discussed the following issues:

- Mr. Robinson’s Motion to Strike the Sheriff’s Response;
- Mr. Robinson’s Motion to Appear in Civilian Clothing and without Physical Restraints;
- The Sheriff and Mr. Robinson’s request to exclude visual recording and photographs in the courtroom; and
- The State’s request to have all non-evidentiary hearings held remotely.

The parties stipulated that the State’s motion to conduct all non-evidentiary hearings virtually and the parties’ request to limit all electronic media coverage needs further briefing.

Those issues are not yet ripe for decision. To facilitate the briefing on those two issues, the court orders as follows:

- If the State seeks to have all non-evidentiary hearings conducted over WebEx, the State must file a motion. The court will not rely on the briefing already provided. A separate motion is required. The time for a response and reply will be governed by rule. As with all motions, the parties must file a request to submit and request a hearing, if desired.
- If the parties seek to have all electronic media coverage limited or restricted during in-court hearings, the parties may file a joint motion. The court will not rely on the briefing already provided. In their motion, the parties must address the factors outlined in Rule 4-401.01(2) of the Utah Rules of Judicial Administration. The time for response and reply will be governed by rule, and the parties must file a request to submit when the matter is ripe for decision.

The court took the Motion to Strike and the Motion to Appear in Civilian Clothing and Without Restraint under advisement. The court now issues the following RULING and ORDER:

1. Defendant's Motion to Strike the Sheriff's Response

The prosecution and the Sheriff's Department filed a joint opposition to Mr. Robinson's motion to wear civilian clothing and appear without physical restraints. (Dkt. 109). Mr. Robinson moved to strike the Sheriff's response as procedurally improper. (Dkt. 111).

At the October 24, 2025, hearing, both parties and the Sheriff's Office agreed that the Sheriff is not a party in this case. The State and Sheriff's Department maintained their position that the Sheriff has standing to file memoranda as a non-party, whereas Mr. Robinson argued the Sheriff has no authority to file memoranda or, at the very least, should be filing separately from the prosecution. However, Mr. Robinson does not dispute that the court may consider the Sheriff's position on courtroom security and do not oppose the court's consideration of that position as written in the State's opposing memorandum.

The Sheriff's Department is not a party in this litigation and its joint memorandum filed with the prosecution is procedurally improper. Therefore, Defendant's Motion to Strike the Sheriff's opposing memorandum is GRANTED.

Even so, Rule 3-414 of the Utah Rules of Judicial Administration requires the court to coordinate courtroom security with the Sheriff's Department. Therefore, as agreed to by Defendant, the court has considered the *substance* of the State and Sheriff's opposing memorandum. The court has also considered the memorandum drafted by the Court Security Director, which was attached to the State's opposition.

If, in the future, the parties have a security concern specific to this case, the parties may present evidence from the Sheriff's Department through affidavits, declarations, exhibits, or witness testimony. This order does not restrict or limit the Sheriff's Department from communicating and coordinating with the court as allowed by statute and by Rule 3-414 of the Rules of Judicial Administration, nor does it prevent the Sheriff's Department from exercising its rights in any other way as allowed by law.

2. Defendant's Motion to Appear in Civilian Clothing and Without Physical Restraints

As an initial matter, the parties agree Defendant has a right to the accoutrements of innocence during a jury trial, including the right to be dressed in civilian clothing and the right to have any physical restraints hidden from a jury's view.

Defendant's motion seeks additional relief beyond his trial rights: he moves to appear without restraints and in civilian clothing at all pre-trial proceedings. Both requests are deviations from the general court security plan, and the court has considered each request separately.

“[A] defendant's right to the physical indicia of innocence must be weighed against ‘the essential state policy of providing security in the courtroom.’ *State v. Lemons*, 844 P.2d 378, 380 (Utah Ct. App. 1992) (quoting *State v. Mitchell*, 824 P.2d 469, 473 (Utah Ct. App. 1991)). The scope of the parties’ arguments and requested relief also impacts the media’s right to report the news and the public’s interest in government transparency. The appropriate balance of each of these concerns implicates the integrity and dignity of the judicial process, which “includes the respectful treatment of defendants.” *Deck v. Missouri*, 544 U.S. 622, 631 (2005); see UT R J ADMIN 3-414(1)(A).

a. Defendant’s request to appear in civilian clothing is GRANTED

Defendant first requests that he be allowed to appear in civilian clothing during all pre-trial hearings. He cites to the pervasive media coverage of his initial hearing and argues that “the repeated and ubiquitous display of Mr. Robinson in jail garb . . . will undoubtedly be viewed by prospective jurors and will inevitably lead to prospective juror perception that he is guilty and deserving of death.” (Def.’s Mot. at 15). In his view, allowing Mr. Robinson to appear in civilian clothing is a “minor inconvenience” compared to the real danger of tainting the prospective jury pool and depriving him of a fair trial.

In response, the State, the Sheriff’s Department, and the Court Security Director argue that dressing defendants in jail clothing assists in securing safety and control because it aids court security in easily identifying Mr. Robinson in the event of a disruption. In addition, the opposition notes that there is no controlling precedent that requires the court to allow Mr. Robinson to dress in civilian clothing pre-trial.

Upon balancing the interests at stake, the court concludes that Mr. Robinson’s right to the presumption of innocence and an unbiased jury supersedes the security concerns of dressing in

civilian clothing in this case. The media interest in Mr. Robinson's trial is arguably unprecedented in the State of Utah. Photographs and visual recordings of Mr. Robinson in jail clothing will likely be shared and disseminated in various public platforms. There is a strong likelihood that a substantial number of potential jurors in Utah County will view these images and may associate Mr. Robinson's jail clothing with indicia of guilt. The danger of prejudice is compounded by technological advancements that allow the images to be manipulated in ways that do not accurately reflect the truth of the court proceedings.

The court intends to hold all of Mr. Robinson's hearings as special settings. Unless unforeseen circumstances arise, he will be the only defendant in the court holding cell when he appears. There is a low likelihood that Mr. Robinson will not be able to be identified or tracked by court security if there is commotion in the courtroom. Given these mitigating circumstances and the potential for prejudicial pre-trial publicity tainting the jury pool, the court ORDERS that Mr. Robinson be dressed in civilian clothing for all pre-trial proceedings. Mr. Robinson's attorneys must coordinate with the Utah County Sheriff's Department to ensure this order is carried out and must provide his clothing at least 72 hours before the hearing.

b. Defendant's request to appear without restraints is DENIED

Mr. Robinson next requests that he appear for all pre-trial proceedings without restraints. Mr. Robinson cites to *Deck v. Missouri* and *United States v. Sanchez-Gomez*, 859 F.3d 649 (9th Cir. 2017), vacated and remanded, 584 U.S. 381 (2018) to support his motion. Although he recognizes that *Deck*'s holding is limited to shackling in front of a jury at trial, Mr. Robinson argues the constitutional dangers articulated in *Deck* extend to pre-trial proceedings, particularly in highly publicized cases such as Mr. Robinson's.

Mr. Robinson argues 1) visibly restraining him could taint the potential jury pool and undermine the presumption of his innocence; 2) restraining him without an individualized determination that he is an escape risk or potentially dangerous violates his right to due process and denigrates the dignity of the proceedings; and 3) restraints potentially impact his ability to effectively participate in the proceedings by inhibiting his ability to take notes and communicate with his counsel. His counsel represents that he has no criminal history and has had no disciplinary incidents while incarcerated at the Utah County jail. Thus, the need for restraints is currently unjustified.

The Rules of Judicial Administration require that all in-custody defendants be restrained unless otherwise ordered by the court. *See* UT R J ADMIN 3-414(9)(C). The court has balanced Mr. Robinson's right to a fair trial, right to the effective assistance of counsel, and right to due process with the security concerns apparent in this case. In doing so, the court notes that Mr. Robinson has no criminal history and there is no evidence that he has been disruptive, disrespectful, or a danger since he has been charged.

This case has generated an immense amount of pre-trial publicity. As with many high-profile cases, public interest may both wax and wane, but it is likely to persist. Visual recordings and photographs of Mr. Robinson shackled may give the impression that he is dangerous and may undermine his presumption of innocence. The potential jury pool in Utah County, based on their proximity, is likely to be even more exposed to the images of these proceedings and the messages those images send.

On the other hand, the charges against Mr. Robinson are serious. If convicted, he faces potential sentences of life in prison or death. Though these proceedings will focus on legal matters, both Mr. Robinson and court patrons are likely to feel strong emotions. The landscape

that lies ahead requires thoughtful and focused work, and the court will not tolerate disruption or commotion that could have been prevented or mitigated by strong security protocols. The safety of Mr. Robinson, court staff, the attorneys, and patrons is a paramount concern. If a disruption occurs, security personnel will need to quickly secure Mr. Robinson in a place of safety. Restraints will help facilitate their responsibilities and promote controlled and orderly proceedings.

Therefore, the court DENIES Mr. Robinson's request to be unrestrained during pre-trial proceedings. The court directs the Sheriff to perform an individualized assessment of the risks associated with this case and secure Mr. Robinson in the least restrictive manner available to mitigate those risks. If restraints will impede Mr. Robinson's ability to take notes or consult with counsel, Mr. Robinson may move for the court to assess the level of restraints to ensure he receives the effective assistance of counsel.

c. The court will amend the decorum order to mitigate prejudice

To mitigate pre-trial prejudice, the court will amend the Standing Decorum Order to prohibit the media from visually recording or photographing Mr. Robinson's physical restraints. To facilitate this order, the court will also order that the media is prohibited from visually recording or photographing him while he is entering the courtroom, exiting the courtroom, or standing up in the courtroom. In making this amendment, the court has considered the factors listed in Rule 4-401.01(2) and finds as follows:

As already discussed, this is a serious case that has garnered national attention. Visual representations of Mr. Robinson in restraints will likely be broadcast over various platforms. Given their proximity to the case, members of Utah County are likely to see images of Mr.

Robinson's restraints. Those images may remain in their minds and give an impression that he is dangerous, an impression that could undermine his presumption of innocence.

The court is committed to open and fair proceedings and recognizes the public's interest in and newsworthiness of these proceedings. The court sees a benefit in allowing the public to observe the proceeding through electronic media coverage. Allowing the public into the courtroom through electronic means increases confidence in our justice system and serves as both an educational tool and an incentive for the public to increase their civic engagement. Limiting visual recording and photography of Mr. Robinson in restraints will not denigrate the public and media's interest. This ruling promotes a healthy balance between preserving Mr. Robinson's constitutional rights and the media and the public's interest in viewing the proceedings.

Accordingly, Defendant's Motion to Wear Civilian Clothing and to Appear Without Restraints is GRANTED IN PART and DENIED IN PART.

Dated this 27th day of October, 2025.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge



CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

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10/27/2025

/s/ TREENA HANSEN

Date: _____

Signature